

25STCV31978A 25STCV31978A

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TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

August 10, 2026

CASE NUMBER

25STCV31978A

MOTIONS

Demurrer to Complaint;

Motion to Strike Portions of Complaint

MOVING PARTIES

Defendants St.

George, Harlan K. Bixby, and BXB Bridge LLC

OPPOSING PARTY

Plaintiff Judith B. Welch

MOTION

Plaintiff Judith

B. Welch ("Plaintiff") brought the instant action against Defendants St. George, Harlan K. Bixby, and BXB Bridge LLC ("Defendants") in connection with the management of the limited partnership of which Plaintiff and Defendants are members. Defendants demur to Plaintiff's complaint and moves to strike portions of the complaint. Plaintiff opposes the motions.

ANALYSIS

"It is black

letter law that a demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) In ruling on a demurrer, the court must "liberally construe[]" the allegations of the complaint. (Code Civ. Proc., § 452.) "This rule of liberal construction means that the reviewing court draws inferences favorable to the plaintiff, not the defendant." (Perez v. Golden Empire Transit Dist. (2012) 209 Cal.App.4th 1228, 1238.)

Any party, within

the time allowed to respond to a pleading, may serve and file a motion to strike the whole pleading or any part thereof.

(Code Civ. Proc., § 435, subd. (b)(1); Cal. Rules of Court, rule 3.1322(b).) On a motion to strike, the court may: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (a)-(b); Stafford v. Shultz (1954) 42 Cal.2d 767, 782.)

Defendants insist

Plaintiff's claims are susceptible to the demurer on several grounds.

Res Judicata and Statute of
Limitations

Preliminarily, Defendants

argue res judicata bars Plaintiff's claims. "'Res judicata' describes the preclusive

effect of a final judgment on the merits.

Res judicata, or claim preclusion, prevents relitigation of the same cause of action in a second suit between the same parties or parties in privity with them. Collateral estoppel, or issue preclusion, 'precludes relitigation of issues argued and decided in prior proceedings.' [Citation] Under the doctrine of res judicata, if a plaintiff prevails in an action, the cause is merged into the judgment and may not be asserted in a subsequent lawsuit; a judgment for the defendant serves as a bar to further litigation of the same cause of action." (Mycogen Corp. v. Monsanto Co. (2002) 28 Cal.4th 888, 896-897.)

In the instant case, Plaintiff alleges claims based on wrongdoing which purportedly occurred in May 2023 and August 2024. (Complaint, ¶¶ 18-19, 21-22, Exhibit B.) The previous lawsuits predate these events. (See Memorandum of Points and Authorities in Support of Demurrer, p. 6.) Accordingly, res judicata does not bar Plaintiff's claims.

For the same reason, Defendants' argument the statute of limitations bars Plaintiff's claims fails. In this regard, Plaintiff alleges Defendants persisted in wrongful conduct. As such, Plaintiff's claims are timely at least as to conduct within the limitations period. (Aryeh v. Canon Business Solutions, Inc. (2013) 55 Cal.4th 1185, 1198.)

Failure to Allege Independent Harm

Defendants maintain Plaintiff cannot bring a direct action against Defendants because Plaintiff does not allege any independent harm. A partner may maintain a direct action against a limited partnership or another partner if the partner pleads an actual or threatened harm that is independent of a harm to the partnership. (Corp. Code, § 15910.01, subd. (b).) Plaintiff alleges she did not "receive distributions in proportion to her investment . . ." (Complaint, ¶ 14.) These allegations are of injury to Plaintiff, not to the partnership itself. Contrary

to Defendants' contention, Plaintiff need not allege the other partners did not sustain the same harm. Consequently, the Court concludes Plaintiff alleges independent harm.

Business Judgment Rule

Defendants contend

the business judgment rule bars Plaintiff's causes of action. The business judgment rule generally shields a corporation and the members of its board of directors from liability for decisions they made based on "any rational business purpose," but it does not shield actions taken with improper motives or because of a conflict of interest. (*Berg & Berg Enterprises, LLC v. Boyle* (2009) 178 Cal.App.4th 1020, 1045.) Plaintiff does allege Defendants acted with improper motives. (Complaint, ¶¶ 24-25.) Plaintiff's allegations in this regard suffice for pleading purposes.

Duplicative Claims

Defendants assert

Plaintiff's causes of action are duplicative.

That is immaterial, as Plaintiff is entitled to plead in the alternative. (*Mendoza v. Continental Sales Co.* (2006) 140 Cal.App.4th 1395, 1402.)

Likewise,

Defendants' argument Plaintiff has not alleged facts sufficient to support her claims is without merit. There is no requirement Plaintiff plead the claims at issue with particularity. Defendants may obtain further information regarding Plaintiff's claims through the discovery process. (See, e.g., *Khoury v. Maly's of Cal., Inc.* (1993) 14 Cal.App.4th 612, 616 ["A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures"].)

Insufficient Allegations

Regarding Reformation

Defendants assert Plaintiff

has not alleged facts to support her claim for reformation. As Defendants point out, Plaintiff must allege the "real," "original," or "intended" agreement to support a claim for reformation. (*Auerbach v. Healy*

(1916) 174 Cal. 60, 63.) However, Plaintiff has alleged the parties entered into an agreement with a definite duration, and Defendants improperly changed that term. Plaintiff seeks to restore the agreement to its original definite duration. (Complaint, ¶¶ 57-60.) Thus, the Court finds Plaintiff has adequately alleged her claim for reformation to defeat Defendant's demurrer challenge.

Laches

Defendants' contention

laches bars Plaintiff's claims is unavailing. A claim may be susceptible to laches when the plaintiff unreasonably delays in asserting it and such delay prejudices the defendant. (In re Marriage of Powers (1990) 218 Cal. App. 3d 626, 642.) The Court cannot determine at this pleading stage a delay of "almost two years" constitutes laches as a matter of law. (See Memorandum of Points and Authorities in Support of Demurrer, p. 12.) This issue is not amenable to resolution by way of a demurrer.

Declaratory Relief

Defendants are incorrect Plaintiff has not adequately alleged entitlement to declaratory relief. "[D]emurrer is usually not an appropriate method for testing the merits of a declaratory relief action, because the plaintiff is entitled to a declaration of rights even if it is adverse to the plaintiff's interest." (Qualified Patients Ass'n v. City of Anaheim (2010) 187 Cal.App.4th 734, 751, internal quotations and citations omitted.) Therefore, on that basis, Defendants' demurrer in this regard is overruled.

Motion to Strike

The Court denies Defendants' motion to strike allegations they claim are "improper and not drawn in conformity with the law." (Memorandum of Points and Authorities in Support of Motion to Strike Complaint, p. 1.) A motion to strike cannot be used as a "line item veto" for the civil defendant" (PH II, Inc. v.

Superior Court (1995) 33 Cal.App.4th 1680, 1683.) Defendants are not entitled to remove any allegations Defendants contend do not support the causes of action at issue. The Court denies the motion to strike such allegations.

CONCLUSION AND ORDER

Defendants'
demurrer to Plaintiff's complaint is overruled.

Defendants' motion
to strike is denied.

Defendants are ordered
to file an answer to the operative complaint within 20 days of issuance of the
Court's ruling, of which Defendants are to provide notice and file proof of
service of same.